

Ashwin Alias Tina vs Kushalpal Singh on 27 May, 2011

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN
JAIPUR BENCH, JAIPUR

ORDER

(1) S.B. Civil Transfer Petition No. 60/2010

Ashwin @ Tina Vs. Kushalpal Singh Bedi

&

(2) S.B. Civil Transfer Petition No. 45/2010

Ashwin @ Tina Vs. Kushalpal Singh Bedi.

DATE OF ORDER: 27.05.2011

Hon'ble Mr. Narendra Kumar Jain, J.

Mr. Santosh Kumar Jain, for the petitioner.

Mr. Pradeep Mathur, for the respondent.

BY THE COURT:

Heard learned counsel for the parties.

2. Both the applications are between the same parties and question involved in both the cases is also similar, therefore, they are being disposed by this common order.

3. In Transfer Application No. 60/2010, the petitioner has prayed that Divorce Petition No. 549/2009 alongwith application under Section 24 of Hindu Marriage Act bearing No. 122/2010 pending in the Family Court, Kota may be transferred to the Court of District Judge, Baran.

4. In Transfer Application No. 45/2010, the petitioner has prayed that Application No. 49/2009, under the provisions of Guardian and Wards Act, pending in the Court of Family Court, Kota may be transferred to the Court of District Judge, Baran.

5. A notice to show cause was given to respondent, but no reply has been filed in both the cases.

6. Learned counsel for the petitioner submitted that the petitioner is a lady and having one minor child, therefore, it is very difficult for her to attend the cases at Kota, therefore, it will be convenient for the petitioner that both the cases are transferred to the Court of District Judge, Baran.

7. Learned counsel for the respondent opposed the applications on the ground that respondent has every apprehension that in case, both the cases are transferred to Baran, then he will be beaten/mis-handled by relatives/family members of the petitioner.

8. I have considered submissions of learned counsel for the parties.

9. Hon'ble Supreme Court in Arti Rani Alias Pinki Devi and Another Vs. Dharmendra Kumar Gupta, reported in (2008) 9 Supreme Court Cases 353 considered similar facts, wherein lady-petitioner having a minor child approached the Supreme Court for transfer of the case under Section 25 C.P.C. and looking to the fact that the petitioner is a woman, having a minor child, the Apex Court held that it would be difficult for her to attend the Court at Palamu and allowed the transfer application.

10. No reply to the applications has been filed. In these circumstances, I am of the view that both the cases be transferred from Family Court, Kota to District Court, Baran.

11. Consequently, both the transfer petitions are allowed. Divorce Petition No. 549/2009 alongwith Misc. Application No. 122/2010 under Section 24 of the Hindu Marriage Act and another Application No. 49/2009 filed under the provisions of Guardian and Wards Act pending in the Family Court, Kota are transferred to the Court of District Judge, Baran.

12. It will be open for the respondent to move necessary application before District Judge, Baran for his security, in case there is any mis-handling with him by relatives or family members of the petitioner.

13. Registry is directed to place a copy of this order in connected file.

14. A copy of this order be sent to both the concerned Courts for necessary compliance.

(Narendra Kumar Jain),J.

Manoj.